

9:00 <u>1</u>	25CV459211	<i>De La Cruz v. General Motors, LLC, et al.</i>	Order on Defendant’s Demurrer to Complaint Defendant General Motors, LLC (“GM”) filed this Demurrer against all Causes of Action in Plaintiff’s Complaint. This Demurrer was duly noticed and set to be heard in this Court on November 5, 2025. However, on October 24, 2025, Plaintiff exercised its right to file a First Amended Complaint under C.C.P. § 472(a). As Plaintiff has timely filed a First Amended Complaint, the Demurrer to the original Complaint is moot. Accordingly, the Court OVERRULES without prejudice Defendant’s Demurrer to the original Complaint. GM shall answer, demur or otherwise respond to the First Amended Complaint within the time permitted by the Code of Civil Procedure. Plaintiff De La Cruz is to prepare and file a formal order after this hearing.
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9:00 <u>2</u>	24CV449543	<i>Jet Insurance Company v. Ryan Gordon et al.</i>	Order on Motion for Discharge and Dismissal of Surety Under License Bond, For a Restraining Order, and for Costs Plaintiff Jet Insurance Company (“Plaintiff”) moves for an Order: 1. Discharging Plaintiff because its payment of the proceeds of Contractor’s License Bond No. JToo7951 (the “Bond”) constitutes a full discharge of all the liability of Plaintiff under C.C.P. § 996.490(a); 2. That all parties to this action are restrained from instituting or further prosecuting any other proceeding in any other court in the State of California, or any other jurisdiction, affecting the rights and obligations between the parties to the interpleader lawsuit filed in Santa Clara County Superior Court Case No. 24CV449543 under C.C.P. § 386(f); and 3. That Plaintiff receive its reasonable costs of \$459.35 under C.C.P. § 386.6, which shall be disbursed to Plaintiff from the remaining Bond funds; and that the remainder of the proceedings pending the outcome of this litigation be disbursed upon further order and at the direction of this Court. Mot. at p. 2 (“the Motion”). The Motion is well grounded in the law, well supported by the facts, and reasonable in all respects. Defendants have not filed any Opposition to the Motion. “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).
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